



CHAPTER 9.

An Act to make provision with respect to the restoration after the war period of trade practices obtaining before that period. [26th February 1942.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) Where during the war period (whether before or after the commencement of this Act) any trade practice obtaining immediately before that period in any undertaking has been departed from in that undertaking, the employer shall, subject to the provisions of this Act, be under an obligation—

Restoration
of pre-war
practices.

(a) to restore or permit the restoration of the trade practice before the expiration of two months from the end of the war period; and

(b) to maintain or permit the continuance of the trade practice for eighteen months from the date when the restoration is effected or the end of the war period, whichever is the later.

(2) Where any undertaking or any branch of an undertaking began to be carried on during the war period (whether before or after the commencement of this Act), the employer shall, subject to the provisions of this Act, be under an obligation—

(a) before the expiration of two months from the end of that period, to introduce, or permit the introduction of, such trade practices as obtained immediately before that period in undertakings or branches of undertakings carried on in circumstances most nearly analogous to those of the undertaking or branch in question; and

- (b) to maintain, or permit the continuance of, such trade practices for eighteen months from the date when their introduction is effected or the end of the war period, whichever is the later.

(3) Where, with a view to accelerating the production of munitions of war, any trade practice obtaining in an undertaking on the thirtieth day of April, nineteen hundred and thirty-nine, was departed from after that date and before the beginning of the war period in pursuance or in consequence of a written agreement between an organisation of employers and a trade union, subsection (1) of this section shall apply as if the trade practice had obtained in the undertaking immediately before the war period and had been departed from in the undertaking during that period.

For the purpose of this subsection, the expression "munitions of war" includes the whole or any part of any ship, submarine, aircraft, tank or similar engine, arms and ammunition, torpedo, or mine, intended or adapted for use in war, and any other article, material or device intended for such use.

Agreements for
modification
of obligation
to restore
practices.

2.—(1) An agreement may be made in writing as respects any undertaking or branch thereof between—

- (a) the employer, an organisation of employers of which he is a member, or an association of which such an organisation is a member; and
- (b) a trade union whose custom it was before the war period to maintain a trade practice in that undertaking or branch or in other undertakings or branches of undertakings carried on in circumstances analogous to those of that undertaking or branch, or an association of which such a trade union is a member;

providing for the modification or waiver of the obligation imposed by section one of this Act in relation to that trade practice, or for the reference to arbitration of the question whether the said obligation should be modified or waived:

Provided that no agreement shall be deemed to have been duly made under this subsection unless, before the making thereof, an opportunity of making representations with respect to its terms was given, by the employer, organisation of employers, or association of organisations of employers by whom or by which it was made, to every trade union which was a party to any agreement in writing in pursuance whereof the trade practice was departed from in the undertaking.

(2) Where an agreement has been duly made under the foregoing subsection in relation to any trade practice, or an award has been made in pursuance of such an agreement, the employer shall, so long as he complies with the terms of the agreement or

award, be deemed to have discharged the obligation imposed by the said section one in relation to that practice.

(3) The Industrial Court shall have power to deal with any question referred to it in pursuance of an agreement duly made under subsection (1) of this section.

(4) In this section the expression "trade union" does not include a combination of which one of the principal objects is the regulation of relations between masters and masters.

3.—(1) If any question arises as respects any undertaking whether— Settlement
of questions.

(a) any obligation has been imposed on the employer by section one of this Act in relation to any trade practice ; or

(b) the employer has discharged any obligation so imposed ;
that question may be reported to the Minister by any organisation of employers or trade union which in the opinion of the Minister habitually takes part in the settlement of wages and working conditions in the trade or industry in question.

(2) Where a question is reported to the Minister under this section, he shall deal with it in accordance with the following provisions :—

(a) if in his opinion suitable provisions already exist for the settlement of the question by virtue of any agreement to which the parties are any such organisation of employers and any such trade union as aforesaid, he shall refer the question for settlement in accordance with those provisions ;

(b) if in his opinion no such provisions exist, he shall either refer the question to arbitration in accordance with the next following section or take such other steps as appear to him to be expedient for settling it ;

(c) where an attempt has been made to settle the question under either of the foregoing paragraphs of this subsection, otherwise than by referring it to arbitration in accordance with the next following section, and in the opinion of the Minister the attempt has failed or is unlikely to succeed within a reasonable time, he shall refer the question to arbitration in accordance with the next following section and revoke any previous reference that may have been made by him.

4.—(1) Any question referred to arbitration in accordance with this section shall be determined by the arbitration of one or more persons (in this Act referred to as an "arbitration tribunal") appointed by the Minister. Arbitrations
under Act.

(2) Where a question is so referred, the arbitration tribunal shall enter upon and proceed with the reference without delay and make its award within fourteen days from the date when the question was so referred to it or such longer time as may be certified by the award to have been necessary for the proper determination of the question.

(3) If as respects any undertaking the arbitration tribunal finds that any obligation imposed by section one of this Act in relation to a trade practice has not been discharged by the employer, its award—

(a) shall define precisely the nature of the trade practice and state in what respects the employer has failed to discharge the said obligation in relation thereto ;

(b) shall state precisely what steps are to be taken by the employer in order to discharge the said obligation in relation to the trade practice ;

(c) may be made so as to take effect from the date of the award, or such earlier date (not being earlier than the date on which the question was reported to the Minister under this Act) as may be specified therein ;

(d) may provide for the payment to any person employed in the undertaking of any sum by way of additional remuneration which he would have received if the trade practice had been observed in the undertaking from the time when the award has effect ;

(e) shall define the period for which the trade practice is to be maintained or continued, so that it may be shorter or longer than the period specified in section one of this Act, but shall not expire later than eighteen months from the date of the award ;

(f) shall be binding on all persons from time to time employing persons in the undertaking.

(4) Any sum due by virtue of any such award to any person employed in an undertaking may be recovered by him summarily as a civil debt from the employer.

(5) Subject to the foregoing provisions of this section, the Minister may make rules for regulating the procedure of arbitration tribunals, and the Arbitration Acts, 1889 to 1934, shall not apply to any reference to an arbitration tribunal except in so far as they may be applied by the said rules.

**Offences and
penalties.**

5.—(1) If, as respects any undertaking, the employer makes default in complying with an award made under the last foregoing section, he shall be guilty of an offence and shall be liable on summary conviction thereof to a fine not exceeding fifty pounds, and, if after being so convicted he continues to make

the like default, he shall be guilty of a further offence and shall be liable on summary conviction thereof to a fine not exceeding fifty pounds for each day on which the default continues after the first mentioned conviction.

(2) Proceedings in respect of an offence under this section may be instituted by or on behalf of any person employed in the undertaking or by or on behalf of any trade union or by or on behalf of the Minister.

(3) Except as provided in this and the last foregoing section, no proceedings, whether civil or criminal, shall be brought against any person in respect of a failure to comply with the obligations imposed on him by section one of this Act.

6. In any proceedings under subsection (4) of section four of this Act or under the last foregoing section, a copy of the award of an arbitration tribunal, purporting to be certified as a true copy by the tribunal or any member thereof, shall be evidence of the contents of the award. Evidence of awards.

7. His Majesty, on the recommendation of the Minister, may by Order in Council direct that this Act shall apply, subject to such modifications and exceptions as may be specified in the Order, to undertakings carried on by or on behalf of His Majesty of such classes as may be so specified. Application to the Crown

8.—(1) This Act shall apply to the following undertakings carried on by a local authority, that is to say,— Application to local authorities.

- (a) gas, water, electricity and transport undertakings; and
- (b) undertakings of such other classes as the Minister may by order direct;

and save as aforesaid this Act shall not apply to any undertaking so carried on.

(2) Where an order is made under the foregoing subsection as respects undertakings of any class, the order may provide that, in the application of this Act to those undertakings, the expression "trade practice" shall not include a rule, practice or custom observed in those undertakings with respect to persons of such classes as may be specified in the order.

9.—(1) Any Order in Council or order made under the foregoing provisions of this Act or this section may be varied or revoked by a subsequent Order in Council or order made in like manner. Provisions as to orders.

(2) The Minister shall neither recommend His Majesty to make any such Order in Council, nor make any such order, until a draft thereof has lain before each House of Parliament for a period of forty days, and if either House within that period resolves that the draft of the Order in Council be not submitted to His Majesty, or that the order be not made, no further proceedings shall be taken thereon.

(3) In reckoning any such period of forty days, no account shall be taken of any time during which Parliament is dissolved or prorogued or during which both Houses are adjourned for more than four days.

Expenses.

10. There shall be defrayed out of moneys provided by Parliament—

- (a) any expenses incurred by the Minister in carrying this Act into operation, including the expenses of arbitration tribunals; and
- (b) any increase in the expenses of the Industrial Court which is attributable to the passing of this Act.

Interpretation.

11.—(1) In this Act the following expressions have the meanings hereby respectively assigned to them, that is to say,—

“employer”, in relation to an undertaking, means the employer of persons employed in the undertaking;

“Industrial Court” means the court constituted by section one of the Industrial Courts Act, 1919;

“local authority” means the council of a county, county borough, county district or metropolitan borough or the Common Council of the City of London or a joint board or joint committee constituted under any enactment to discharge the functions of two or more such councils;

“the Minister” means the Minister of Labour and National Service;

“organisation of employers”, except in section two of this Act, includes an association of two or more such organisations.

“trade practice”, in relation to an undertaking or branch of an undertaking, means any rule, practice or custom (whether obtaining by virtue of contracts of employment or otherwise) observed in the undertaking or branch with respect to the class or classes of persons to be or not to be employed therein, or with respect to the conditions of employment, hours of work or working conditions of the persons or any class of the persons so employed;

“trade union” means any combination which is by virtue of section two of the Trade Union Act, 1913, a trade union for the purpose of the Trade Union Acts, 1871 to 1927; and, except in section two of this Act, includes an association of two or more such combinations.

“war period” means the period beginning with the third day of September, nineteen hundred and thirty-nine and ending with such date as the Minister may by order appoint, not being later than the date on which the Emergency Powers (Defence) Act, 1939, expires.

9 & 10 Geo. 5.
c. 69.

2 & 3 Geo. 5.
c. 30.

2 & 3 Geo. 6.
c. 62.

(2) Subject to the provisions of this Act relating to the Crown and local authorities, this Act shall not apply to an undertaking which is not carried on by way of trade or business.

12. This Act, in its application to Scotland, shall have effect subject to the following modifications :— Application to Scotland.

- (a) the word " summarily " in subsection (4) of section four shall be omitted ;
- (b) subsection (2) of section five shall be omitted ;
- (c) for the definition of the expression " local authority " in subsection (1) of the last foregoing section there shall be substituted the following definition :—

" local authority " means a local authority as defined in the Local Authorities Loans (Scotland) Act, 1891, or a joint committee of any two or more such authorities constituted under any enactment.

54 & 55 Vict.
c. 34.

13. This Act, in its application to Northern Ireland, shall have effect subject to the following modifications :— Application to Northern Ireland.

- (a) for references to the Minister of Labour and National Service (except where they occur in relation to the making of recommendations to His Majesty) there shall be substituted references to the Ministry of Labour for Northern Ireland ;
- (b) subsection (2) of section nine, in its application to orders of the Ministry of Labour for Northern Ireland, shall have effect as if—
 - (i) for the reference to Parliament there were substituted a reference to the Parliament of Northern Ireland ; and
 - (ii) for the reference to a period of forty days there were substituted a reference to the period prescribed by subsection (1) of section four of the Rules Publication Act (Northern Ireland), 1925 ;
 and subsection (3) of the said section nine shall not apply to orders of the said Ministry ;
- (c) for the reference to the Arbitration Acts, 1889 to 1934, there shall be substituted a reference to the Arbitration Act (Northern Ireland), 1937 ;
- (d) for references to the Trade Union Acts, 1871 to 1927, and to any enactment of those Acts, there shall be substituted references to the Trade Union Acts (Northern Ireland), 1871 to 1927, and to the corresponding enactment thereof ;
- (e) the expression " local authority " means the council of any county, county or other borough, urban or rural

district, a board of guardians, the commissioners of a town, an education authority and any committee or board appointed wholly or partly by a county or district council or board of guardians or by several such councils or boards jointly ;

- (f) the expression " summary conviction " means conviction subject to, and in accordance with, the Petty Sessions (Ireland) Act, 1851, and any Act (including an Act of the Parliament of Northern Ireland) amending that Act.

14 & 15 Vict.
c. 93.

Short title.

14. This Act may be cited as the Restoration of Pre-War Trade Practices Act, 1942.

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